THE *LOPER* RORSCHACH TEST

MAXIMALISM, BIFURCATION, AND THE CIRCUIT SPLIT OVER AGENCY DEFERENCE

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INTRODUCTION

The Supreme Court's decision in *Loper Bright Enterprises v. Raimondo* overruled the 40-year-old framework of *Chevron* deference, which had long governed the relationship between federal agencies and the judiciary. For decades, *Chevron* provided a stabilizing mechanism: once a court determined the statute did not resolve the issue at hand and *Chevron* applied, the court would uphold any permissible agency construction.[1] With *Chevron* overruled, the federal courts are tasked with exercising "independent judgment" on all questions of law, holding that courts "may not defer to an agency interpretation of the law simply because a statute is ambiguous."[2]

However, the Court in *Loper Bright* reaffirmed that where Congress specifically designated or left room for policy judgment, courts review the agency's exercise of that discretion under the "arbitrary and capricious" standard codified in the Administrative Procedure Act (APA) and explained in *Motor Vehicle Manufacturers Association v. State Farm*.[3] This preservation has created a "boundary problem" that has started to produce different approaches across different circuits.

The central legal question of the post-*Loper* era is no longer whether to defer, but where the line is drawn between a question of law, subject to *de novo* review, and a question of policy or fact, subject to deferential review. As Justice Kagan observed in her dissent in *Loper Bright*, distinguishing between legal interpretation and policymaking is

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[1] *Chevron U.S.A. Inc. v. Nat. Res. Def. Council, Inc.*, 467 U.S. 837, 843-44 (1984), overruled by *Loper Bright Enters. v. Raimondo*, 144 S. Ct. 2244 (2024).

[2] *Loper Bright Enters. v. Raimondo*, 144 S. Ct. 2244, 2273 (2024).

[3] *Id.* at 2263 (citing *Motor Vehicle Mfrs. Ass'n of U.S., Inc. v. State Farm Mut. Auto. Ins. Co.*, 463 U.S. 29, 43 (1983)); *see also* 5 U.S.C. § 706(2)(A).

often difficult because resolving statutory ambiguities often involves policy trade-offs familiar to agencies but that are not suited for judicial resolution.[4] Even so, the majority insisted that the "[r]esolution of statutory ambiguities involves legal interpretation," a task that does not become policymaking just because an agency is involved.[5]

In the wake of this decision, federal courts of appeals have diverged in their methodology for navigating this boundary.[6] In early post-*Loper Bright* FCC/telecom cases, the Sixth Circuit has often adopted a "Maximalist" model, which tends to treat mixed questions as pure questions of law to be decided *de novo*. Under this approach, functional classifications and technical definitions are treated as fixed statutory terms, effectively constraining the agency's ability to adapt to technological change.[7] In stark contrast, the D.C. and Second Circuit have adopted a "Bifurcated" model. These courts exercised independent legal judgment to define statutory terms[8] but switch to a deferential mode when reviewing the agency's factual application of those terms to complex regulatory realities.[9] Complicating this landscape further is the Fifth Circuit's "Structural" approach, which bypassed the statutory definitions entirely to vacate agency civil penalties on the constitutional ground that in-house adjudication violates the Seventh Amendment right to a jury trial.[10]

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[4] *Loper Bright*, 144 S. Ct. at 2294-95 (Kagan, J., dissenting).

[5] *Id.* at 2252.

[6] For clarity, I refer to these emerging patterns as "Maximalist," "Bifurcated," and "Structural."

[7] *See Ohio Telecom Ass'n v. FCC*, 150 F.4th 694, 710-11 (6th Cir. 2025) (utilizing contemporaneous dictionary definitions to determine the "best reading" of a statute).

[8] *Verizon Commc'ns Inc. v. FCC*, 156 F.4th 86, 94 (2d Cir. 2025); *Sprint Corp. v. FCC*, 151 F.4th 347, 357 (D.C. Cir. 2025).

[9] *Sprint*, 151 F.4th at 359; *Verizon*, 156 F.4th at 98-99.

[10] *AT&T Inc. v. FCC*, 149 F.4th 491, 497 (5th Cir. 2025) (withdrawing and superseding 135

This paper argues that the Sixth Circuit's "Maximalist" model, while faithful to *Loper Bright*'s rejection of deference, improperly collapses technical policy judgments into questions of statutory interpretation. While the Fifth Circuit's "Structural" approach attempts to take apart the administrative state through constitutional grounds, the "Maximalist" approach poses a more subtle but dangerous threat: paralyzing regulatory schemes and inviting judicial micromanagement of complex technical issues.[11] In contrast, the "Bifurcated" model adopted by the D.C. and Second Circuits is more administrable. This approach honors the APA's dual mandate by both exercising independent judgment to define the outer bounds of statutory terms while reserving deferential review for the agency's factual application of those terms within those bounds.[12]

This thesis is reinforced by the Supreme Court's recent decision in *Seven County Infrastructure Coalition v. Eagle County*.[13] In a parallel, non-telecom context, *Seven County* illustrates the same pattern by specifically draws a line between (1) the *de* novo judicial task of fixing the meaning of statutory terms and (2) the "fact-dependent, context-specific, and policy-laden choices" agencies have to make when implementing those terms.[14] *Seven County* also highlights the central vulnerability of the post-*Loper Bright* landscape, showing that once *Chevron* is gone, the practical scope of agency power often turns on a

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F.4th 230 (5th Cir. 2025)).

[11] *See Seven Cnty. Infrastructure Coal. v. Eagle Cnty.*, 145 S. Ct. 1497, 1512 (2025) ("Courts should afford substantial deference . . . and should not micromanage those agency choices."); *In re MCP No. 185*, 124 F.4th 993, 997-98 (6th Cir. 2025).

[12] *See Sprint*, 151 F.4th at 363 (defining the statutory term "customary proprietary network information" *de novo*); *Verizon*, 156 F.4th at 99 (reviewing the agency's factual application of data security standards under the deferential arbitrary and capricious review standard).

[13] *Seven Cnty.*, 145 S. Ct. 1497 (2025).

[14] *Id.* at 1512-13.

threshold judicial move—whether a dispute is framed as a question of "law," triggering independent judgment, or as implementation within a zone of discretion, triggering deferential review.[15] That classification choice is not dictated by *Loper Bright* itself, but it becomes outcome-determinative because *Loper Bright* raises the stakes of calling something the "law" in the first place, a choice that the telecom cases below illustrate in real-time.

THE DOCTRINAL SHIFT: FROM *CHEVRON* TO *LOPER BRIGHT*

To understand the current fracture among the federal circuit courts, one must first isolate the precise doctrinal mechanism under which the Supreme Court altered the separation of powers. The transition from *Chevron* to *Loper Bright* was not one that merely changed judicial attitude, but instead was a statutory rejection of the presumption that ambiguity constitutes a delegation of power.[16] But in reclaiming interpretive authority, the Court explicitly left the framework for reviewing discretionary agency action intact, creating the very friction that now occupies the lower courts.

For decades, *Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc.* governed judicial review of agency statutory interpretations through its two-step framework. Courts would defer to reasonable agency interpretations of ambiguous statutes, treating statutory silence as implicit delegation of lawmaking power.[17] This permitted agencies to

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[15] *Id.* at 1517 (explaining that an agency may draw a "manageable line" in defining the scope of effects it will evaluate); *see also Loper Bright*, 144 S. Ct. at 2263 (describing judicial role in setting legal boundaries while preserving deferential review of "reasoned decisionmaking" within delegated discretion).

[16] *Loper Bright*, 144 S. Ct. at 2265-66.

[17] *Chevron*, 467 U.S. at 842-44.

change interpretations over time, fusing statutory meaning with policy implementation.[18]

A. *Loper Bright and the Resurrection of the APA*

In *Loper Bright Enterprises v. Raimondo*, the Supreme Court rejected the "implicit delegation" fiction as being fundamentally inconsistent with the Administrative Procedure Act (APA).[19] The Court held that Section 706 of the APA commands courts to "decide all relevant questions of law," leaving no room for binding deference to agency legal conclusions, even when statutes are ambiguous.[20] Courts must now use "traditional tools of statutory construction" to find the "best reading" of statutes.[21] While courts may accord agency views "respect" under *Skidmore v. Swift & Co.* based on their persuasive power, they never surrender independent judgment.[22]

B. *The Survival of State Farm Deference*

While *Loper Bright* consolidated the power to interpret law within the judiciary, it expressly preserved the agency's power to make policy. The Court acknowledged that some statutes do, in fact, delegate discretionary authority to agencies, often through broad terms such as "appropriate" or "reasonable."[23] In instances like these, the court's role is limited to only two functions: (1) independently defining the "boundaries of the

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[18] *Smiley v. Citibank (S.D.), N.A.*, 517 U.S. 735, 742 (1996); *Nat'l Cable & Telecomms. Ass'n v. Brand X Internet Servs.*, 545 U.S. 967, 981-82 (2005) (holding that agency inconsistency is not a basis for declining deference, so long as the change is adequately explained).

[19] *Loper Bright*, 144 S. Ct. at 2265-66 (rejecting the presumption that ambiguity constitutes a delegation of law-interpreting power).

[20] *See* 5 U.S.C. § 706 (2022); *Loper Bright*, 144 S. Ct. at 2261, 2273 (holding that courts "may not defer to an agency interpretation of the law simply because a statute is ambiguous").

[21] *Loper Bright*, 144 S. Ct. at 2266.

[22] *Id.* at 2259, 2262 (citing *Skidmore v. Swift & Co.*, 323 U.S. 134, 140 (1944)).

[23] *Id.* at 2263 (citing *Michigan v. EPA*, 576 U.S. 743, 752 (2015)).

delegated authority," which is a question of law; and (2) ensuring the agency engaged in "reasoned decisionmaking" within those boundaries.[24]

Under *State Farm*, courts must defer to discretionary policy choices if the agency examined relevant data and articulated a rational connection between facts and decisions.[25] The post-*Loper* landscapes thus bifurcates: *de novo* review for statutory meaning; deferential review for policy and fact.[26]

In this gray area, the boundary between the court's definition of the statute and the agency's application of it, the lower courts have begun to diverge.

THE CIRCUIT SPLIT: COMPETING MODELS OF POST-*LOPER* REVIEW

A. ***Model 1:*** *The Maximalist Approach (The Sixth Circuit)*

The Sixth Circuit has emerged as the primary architect of the "Maximalist" model of post-*Chevron* review. This approach interprets *Loper Bright* as a mandate to eradicate the concept of "mixed questions of law and fact" in regulatory disputes, instead making them pure questions of statutory interpretation to be resolved *de novo*. An exemplary model of this model is the court's landmark decision in *Ohio Telecom Association v. FCC*, which vacated the Federal Communications Commission's (FCC) 2024 order reclassifying broadband internet access as a telecommunications service.[27]

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[24] *Id.* at 2263.

[25] *State Farm*, 463 U.S. at 43; *see also id.*

[26] *Loper Bright*, 144 S. Ct. at 2261, 2263, 2273; 5 U.S.C. § 706 (2022); *State Farm*, 463 U.S. at 43; *see also Seven Cnty.*, 145 S. Ct. at 1517.

[27] *Ohio Telecom Ass'n v. FCC* (In re MCP No. 185), 124 F.4th 993, 997-98 (6th Cir. 2025) (describing the 2024 Safeguarding Order treating providers as "telecommunications service"/Title II again).

1. The "Best Reading" Mandate and the Rejection of *Stare Decisis*

In *Ohio Telecom*, the court was presented with a recurring administrative law conflict since the 1990s: how to classify broadband internet under the Communications Act of 1934. For two decades, the FCC went back and forth between classifying broadband as a Title II "telecommunications service," which is subject to common carrier regulation, and a Title I "information service," which is subject to lighter regulation than a telecommunications service.[28] Under the *Chevron* doctrine, the Supreme Court had famously deferred to the FCC's classification in *National Cable & Telecommunications Association v. Brand X Internet Services*, holding that the statutory term "telecommunications service" was ambiguous.[29]

However, instead of relying upon *Brand X*, the Sixth Circuit held that *Loper Bright* had fundamentally altered the precedential weight of *Brand X*. Under *Brand X*, a court's prior decision upholding an agency interpretation under *Chevron* did not necessarily fix the statute's meaning for all time; it only meant that the earlier interpretation was permissible in that case; after *Loper Bright*, agencies may still adopt a different interpretation's legality under the statute's best reading, and *stare decisis* continues to bind courts to the holdings of prior cases.[30] As a result, the court felt empowered to approach the statutory text treating *Brand X* as not fixing statutory meaning and then

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[28] *Id.* at 997-1000 (the opinion walks through the FCC's inconsistent approach, including 2015/2018/2024 shifts and prior D.C. Circuit *Chevron* approvals).

[29] *Brand X*, 545 U.S. at 981-82.

[30] In re MCP, 124 F.4th at 1002-03 (the court explains *Brand X* upheld a specific 2002 FCC order; the action now is the 2024 Safeguarding Order, therefore *Brand X* is not binding as "statutory stare decisis" for this different agency action); *see also Loper Bright*, 144 S. Ct. at 2273-74 (holding that *Chevron*-based precedents are subject to *stare decisis*, but only regarding the specific holding of lawfulness).

applying *Loper Bright*'s "single, best meaning."[31] This move effectively nullified the Supreme Court's prior finding of ambiguity, showing the Maximalist view that *Loper Bright* empowers lower courts to override even Supreme Court precedent, if that precedent was based on deference rather than an independent judicial finding of meaning.[32]

2. Collapsing Technical Reality into Statutory Definition

The core of the Maximalist approach is the subordination of technical agency expertise to judicial textualism. The FCC argued that the functional architecture of the modern Internet, specifically how data packets are transmitted and routed, constituted a "telecommunications service."[33] The Sixth Circuit rejected this analysis in favor of a "best reading" largely based on contemporaneous dictionary definitions.[34]

The court focused on the statutory definition of "information service," which includes the "offering of a capability for . . . acquiring, storing . . . [or] retrieving . . . information."[35] They reasoned that because broadband providers offer users the capability to acquire third-party content, such as Netflix or social media, they necessarily provide an information service, not a bare transmission service.[36] By utilizing the "traditional tools of statutory construction" to treat the definitions of

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[31] In re MCP, 124 F.4th at 1002-03; *see also Loper Bright*, 144 S. Ct. at 2266.

[32] *See Brand X*, 545 U.S. at 982 (holding that a court's prior construction of a statute trumps an agency construction only if the prior court decision held the statute "unambiguous").

[33] In re MCP, 124 F.4th at 1003-04.

[34] *Id.* (utilizing 1990s dictionary definitions to determine the ordinary meaning of "offer" and "capability").

[35] 47 U.S.C. § 153(24) (2022).

[36] In re MCP, 124 F.4th at 1003-04.

"telecommunications" and "information service" as mutually exclusive legal categories, the court effectively froze the regulatory classification of the internet based on the 1996 statutory text, leaving no room for the agency to adapt definitions to evolving technology.[37] The court stated explicitly that their goal was to "end the FCC's vacillations," signaling that the Maximalist model views policy flexibility not as a feature of administrative governance, but instead as a legal defect that needs to be cured by judicial finality.[38]

3. The Displacement of the Major Questions Doctrine

The *Ohio Telecom* decision demonstrated how the Maximalist model renders the Major Questions Doctrine (MQD) increasingly redundant. Early on in the litigation, the Sixth Circuit stayed the FCC's order by invoking the MQD, arguing that net neutrality was a matter of "vast economic and political significance" which requires clear congressional authorization.[39] However, in the final opinion based on the merits of the case, the court noted there was "no need" to rely on the MQD because the "plain language" of the statute was sufficient to invalidate the agency's action.[40]

This pivot reveals the power of the Maximalist model: it no longer requires the "extraordinary" step of declaring a policy a "major question" to strike it down.[41] Instead,

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[37] *See Loper Bright*, 144 S. Ct. at 2266 (quoting *Wisconsin Central Ltd. v. United States*, 585 U.S. 274, 284 (2018)) (asserting that "every statute's meaning is fixed at the time of enactment").

[38] In re MCP, 124 F.4th at 1003-04.

[39] *Id.* at 1001; *see also West Virginia v. EPA*, 597 U.S. 697, 716 (2022).

[40] *Id.* at 715.

[41] *See* Randolph May, *What's Up First — MQD or BR?*, YALE J. ON REG.: Notice & Comment (Aug. 28, 2024), https://www.yalejreg.com/nc/whats-up-first-mqd-or-br-by-randolph-may/ [https://perma.cc/X68W-CQNJ] (discussing the interplay between the "Best Reading" (BR) and Major Questions Doctrine (MQD) post-*Loper*).

by the court treating every regulatory ambiguity as a question of law which must be resolved *de novo* under *Loper Bright*, the court can vacate significant agency actions through standard statutory interpretation. In the Sixth Circuit's view, there are no "gray areas" of delegation—there is only the law, which the court alone has the competence to define.

B. ***Model 2:*** *The Bifurcated Approach (The D.C. and Second Circuits)*

While the Sixth Circuit's Maximalist approach suggests that *Loper Bright* effectively flattened administrative law into a single inquiry involving statutory interpretation, the D.C. and Second Circuits have coalesced around a "Bifurcated" model. In parallel decisions issued late this year, *Verizon Communications, Inc. v. FCC* and *Sprint Corp. v. FCC*, these courts showed that independent judicial judgment on questions of law are able to peacefully coexist with substantial deference to agency policymaking.[42] By separating the legal question of what the statute covers from the factual question of whether the carrier violated the statute, these circuits offer a pathway that is able to preserve the administrative state's enforcement capacity without relinquishing the judicial duty to say what the law is.

1. Step One: Defining Statutory Boundaries *De Novo*

The Bifurcated model starts by strictly adhering to *Loper Bright*'s order to exercise independent judgment on statutory meaning. In *Sprint* and *Verizon*, the central legal question was whether customer location information (CLI), which is data gathered when

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[42] *Sprint*, 151 F.4th at 352-53, 359; *Verizon*, 156 F.4th at 94.

a phone connects to a cell tower, constituted "customer proprietary network information" (CPNI) under Section 222 of the Communications Act.[43] The carriers argued that because the statute defines CPNI as information that relates to the "location . . . of a telecommunications device," it only covered data that was generated during an active voice call, but did not cover the passive device-location data that was gathered while a phone was idle.[44]

The FCC requested for deference to its interpretation, but it was rejected; instead, both courts engaged in a *de novo* textual analysis. The D.C. Circuit dismantled the carriers' textual arguments without relying on agency expertise, writing that "[e]very cell phone is a tracking device."[45] The court found that the "best reading" of the statute was one that covered device location, as a phone has to connect to a tower to be available for a call; therefore the data relates to the provision of the service.[46] Likewise, the Second Circuit exercised "independent judgment" when rejecting Verizon's argument that the data was not obtained "solely by virtue of the carrier-customer relationship."[47]

Neither court found the statute ambiguous or relied on the FCC's prior orders to construct what the statute meant. Instead, they followed the mandate set by *Loper Bright* by using the traditional tools of construction to define what the outer boundaries of the agency's jurisdiction are.[48] Once the courts established *de novo* that the location data fell

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[43] *Id.*

[44] *Sprint*, 151 F.4th at 364-65 (citing 47 U.S.C. § 222(h)(1)).

[45] *Id.* at 352, 364-66.

[46] *Id.* at 366 (concluding that "under the best reading of the statute, location CPNI is not limited to call location information").

[47] *Verizon*, 156 F.4th at 95, 97-98 (holding that device-location data is obtained "solely" by virtue of the relationship because the voice service requires it to operate).

[48] *Sprint*, 151 F.4th at 366; *Verizon*, 156 F.4th at 94 (citing *Loper Bright*, 144 S. Ct. at 2262-63).

within the statutory definition of CPNI, they moved into the second phase of review.

2. Step Two: Deference in Enforcement and Application

After establishing the legal boundary, both circuits then transitioned to a deferential posture to review how the FCC applied the law to the facts. This is the key distinction between the Bifurcated model and the Maximalist model: rather than treating the adequacy of the carriers' data security measures as a question of law that had to be reexamined, the courts treated as a question of policy and fact, governed under *State Farm* and the arbitrary and capricious standard.[49]

The FCC had fined the carriers nearly $200 million combined, finding that their reliance on assurances over contract from third-party data aggregators, or an "honor system," failed to constitute "reasonable measures" to protect data.[50] The D.C. Circuit noted that while statutory interpretation is *de novo*, arbitrary and capricious review continues to be "highly deferential."[51] In applying this standard, the court found that the FCC had "rationally concluded that Sprint and T-Mobile's safeguards for CPNI were unreasonable," particularly after they did not remedy defects after a large security breach occurred.[52]

Similarly, the Second Circuit adopted a bifurcated posture when looking at how the penalties were calculated. The carriers attempted to argue that their conduct constituted a "single act or failure to act," subject to a statutory cap of approximately $2

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[49] *Sprint*, 151 F.4th at 367; *Verizon*, 156 F.4th at 99.
[50] *Sprint*, 151 F.4th at 357-58.
[51] *Id.* at 359 (citing *Nat'l Lifeline Ass'n v. FCC*, 983 F.3d 498, 507 (D.C. Cir. 2020)).
[52] *Id.* at 368 (holding that the FCC "rationally concluded" safeguards were unreasonable; *Verizon*, 156 F.4th at 100.

million.[53] While acknowledging that the meaning of "forfeiture" is a legal question for the judiciary, the court held that the method of calculating that forfeiture, specifically whether to penalize per act or per day, is a policy choice delegated to the Commission's enforcement discretion to determine the "unit of prosecution" within reasonable boundaries.[54] Therefore, the court reviewed the FCC's decision to treat each third-party contract as a separate violation not as an interpretive question, but as a technical application of the penalty framework, ultimately upholding the $47 million fine against Verizon as "reasoned decisionmaking" within those delegated bounds.[55] This approach asserts the *Loper Bright* distinction between defining the existence of delegated authority through the law and utilizing discretion to review the exercise of that authority.[56]

3. Rejecting Constitutional Avoidance

Finally, a characterization included within the Bifurcated model is the refusal to allow structural constitutional claims to swallow administrative law. The carriers argued that the FCC's in-house adjudication of fines violated the Seventh Amendment right to a jury trial as articulated in *SEC v. Jarkesy*.[57] Unlike the Fifth Circuit, which is discussed below in Model 3, both the D.C. and Second Circuits rejected this argument on statutory grounds, though they did so by acknowledging a significant procedural downgrade for

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[53] *Verizon*, 156 F.4th at 101-02 (citing 47 U.S.C. § 503(b)(2)(B)).

[54] *Id.* at 102 ("We conclude . . . that the Communications Act vests the agency with some discretion to select, from a reasonable range of possibilities, the unit of prosecution.").

[55] *Id.* at 103; *Sprint*, 151 F.4th at 369 (finding the per-violation calculation "rational and properly within the Commission's discretion").

[56] *See Loper Bright*, 144 S. Ct. at 2263 (noting courts must fix the boundaries of delegated authority and ensure reasoned decisionmaking within them).

[57] *Sprint*, 151 F.4th at 359-62; *Verizon*, 156 F.4th at 106-08; *see also SEC v. Jarkesy*, 603 U.S. 109, 122 (2024).

the agency. Since Section 504(a) of the Communications Act allows a carrier to refuse payment and receive a collection action in district court, giving a trial *de novo*, these courts found a statutory safety valve.[58] This mechanism makes the FCC's forfeiture determination non-self-executing, more similar to an opening bid than a final judgment.[59] By resolving the dispute through these cumbersome "statutory mechanics" instead of constitutional invalidation, the Bifurcated model engages in a form of judicial triage, preserving the administrative state's power to enforce the law, even if it strips the agency of its power to adjudicate it with finality.[60]

THE SUPREME COURT'S RESOLUTION: *SEVEN COUNTY INFRASTRUCTURE V. EAGLE COUNTY*

A. The "Rosetta Stone" for Post-Loper Review

Seven County Infrastructure Coalition v. Eagle County serves as the "Rosetta Stone" for post-*Loper* review. In reversing the D.C. Circuit's invalidation of an environmental impact statement, Justice Kavanaugh's opinion clarified that Loper Bright's mandate for independent judgment does not eliminate deference to agency policy choices.[61] Instead, the threshold classification, statutory definition vs. discretionary scope, is now dispositive.[62]

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[58] *Sprint*, 151 F.4th at 359-60; *Verizon*, 156 F.4th at 106-07.

[59] *Sprint*, 151 F.4th at 361 (explaining that the NAL "has no legal effect unless and until . . . a court enters a final judgment enforcing the Commission's order"); *Verizon*, 156 F.4th at 106-07 (noting that the "FCC's forfeiture order . . . does not, by itself, compel payment").

[60] A third approach has emerged in the Fifth Circuit, which bypassed *Loper Bright*'s statutory framework entirely. In *AT&T Inc. v. FCC*, 149 F.4th 491 (5th Cir. 2025), the court vacated civil penalties on Seventh Amendment grounds under *SEC v. Jarkesy*, holding that agency adjudication of common-law-like claims violates the jury trial right. This "Structural" Approach, while significant, does not engage with the law/fact boundary problem at the heart of post-*Loper* interpretation and is beyond this paper's scope.

[61] *Seven Cnty.*, 145 S. Ct. at 1511-12.

[62] *See id.* at 1512; *see also* Note, *National Environmental Policy Act—Administrative Law—*

This case began after the Surface Transportation Board approved an 88-mile railroad line designed to connect the Uinta Basin's oil reserves to the national rail network.[63] The central question to the case was whether the National Environmental Policy Act (NEPA) required the agency to analyze the "upstream" effects of increased oil drilling and the "downstream" effects of refining that oil thousands of miles away.[64] The D.C. Circuit had vacated the Board's approval, holding that the agency failed to take a "hard look" at these reasonably foreseen impacts.[65] In reversing that decision, the Supreme Court did not only resolve a NEPA dispute, but it also provided a blueprint for how *Loper Bright* and *State Farm* co-exist.

This opinion invokes *Loper Bright* to assert judicial supremacy over legal definitions while invoking *State Farm* simultaneously to insulate agency fact-finding.[66] The Court affirmed that under *Loper Bright*, the meaning of a statutory term, such as the term "detailed" in NEPA's requirement for a "detailed statement," is "a question of law to be decided by a court."[67] The Court immediately distinguished this legal duty from the factual execution of that duty; they found that determining what specific details must be included in an EIS "involves primarily issues of fact" that are within the agency's

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Agency Deference—Seven County Infrastructure Coalition v. Eagle County, 139 HARV. L. REV. 409, 414 (2025) (noting that the Court used the "threshold question of type of review" to determine the level of deference).

[63] *Seven Cnty.*, 145 S. Ct. at 1507.

[64] *Eagle Cnty. v. Surface Transp. Bd.*, 82 F.4th 1152, 1177 (D.C. Cir. 2023), *rev'd sub nom. Seven Cnty. Infrastructure Coal. v. Eagle Cnty.*, 145 S. Ct. 1497 (2025); *see also Seven Cnty.*, 145 S. Ct. at 1508-09.

[65] *Seven Cnty.*, 145 S. Ct. at 1508-10 (describing the D.C. Circuit's reasoning regarding upstream/downstream effects).

[66] *Seven Cnty.*, 145 S. Ct. at 1511-12 (citing *Loper Bright*, 144 S. Ct. at 2261; *State Farm*, 463 U.S. at 43).

[67] *Id.* at 1512 (citing *Loper Bright*, 144 S. Ct. at 2261).

discretion.[68]

Seven County involved NEPA, a "purely procedural" statute that imposes no substantive obligations, whereas the Communications Act empowers the FCC to regulate conduct directly.[69] Skeptics might argue this distinction limits *Seven County*'s applicability to the substantive circuit split. However, the Court's reasoning was not tethered to NEPA's procedural limits, instead, it was tailored to the functional distinction between defining a legal term and executing a policy choice.[70] By validating this law vs. execution dichotomy, the Court provided a substantive signal that validates the Bifurcated model's attempt to save agency fact-finding from the Maximalist "axe."[71]

This distinction addresses the "gap" created by *Loper Bright*. As some legal commentators have noted, *Loper Bright* created a large rift between the *de novo* review required for questions of law and the deferential review allowed for exercises of discretion.[72] *Seven County* functions as the Rosetta Stone because it teaches lower courts how to classify agency actions into one of those two categories without collapsing the distinction entirely. In declaring that "[t]he bedrock principle of judicial review in NEPA

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[68] *Id.* (quoting *Marsh v. Or. Nat. Res. Council*, 490 U.S. 360, 377 (1989)).

[69] 47 U.S.C. § 201(b) (2022) (authorizing the FCC to prescribe rules to ensure that all "charges, practices, classifications, and regulations" are just and reasonable); *see also Ohio Telecom*, 150 F.4th at 702 (noting that the 1934 Act granted the FCC "broad authority to regulate interstate telephone communications").

[70] *Seven Cty.*, 145 S. Ct. at 1512 (distinguishing the "legal question" of defining the statutory term "detailed" from the factual determination of "what details need to be included," which involves "fact-dependent, context-specific, and policy-laden choices").

[71] *Id.* at 1512-13 (citing *Loper Bright*, 144 S. Ct. at 2261) (invoking "black-letter administrative law" principles to affirm that courts must be "most deferential" when reviewing predictive or scientific judgments); *Marsh v. Or. Nat. Res. Council*, 490 U.S. 360, 377-78 (1989) (explaining the reviewing court is "most deferential" when examining scientific determinations).

[72] Note, *supra* note 62, at 414 ("The *Loper Bright* Court thus created a large gap between . . . the deference afforded to an agency in a review-of-discretion posture . . . and the *de novo* review of questions of law demanded by *Loper Bright*.").

cases can be stated in a word: Deference," the Court implied that where a statute implies a degree of executionary flexibility, the judiciary's role shifts from being an independent interpreter to being a deferential overseer.[73] This holding fundamentally rejects the premise that *Loper Bright* transformed all regulatory disputes into questions of law, thereby reestablishing a safe harbor for administrative expertise, provided the agency operates within the boundaries of clearly defined statutory terms.[74]

THEORETICAL ANALYSIS: THE LAW-FACT DISTINCTION

A. The "Gray Area" of Delegation

While *Seven County* provides the doctrinal permission structure for the Bifurcated model, the question remains: why is the "gray area" of delegation inevitable?[75] The Maximalist model, as shown through the Sixth Circuit's approach in *Ohio Telecom*, rests on the assumption that every regulatory question possesses a single "best reading" that can be solely brought out through the "traditional tools of statutory construction."[76] This presumes a level of linguistic precision that Congress rarely achieves and technical realities often defy.[77] In reality, the boundary between legal interpretation and factual execution is not a hard line but a functional gradient, requiring a zone where judicial

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[73] *Seven Cnty.*, 145 S. Ct. at 1515.

[74] *Id.* at 1512 ("Courts should afford substantial deference and should not micromanage those agency choices.").

[75] *Seven Cnty.*, 145 S. Ct. at 1516.

[76] *Ohio Telecom Ass'n*, 150 F.4th at 708.

[77] *See Loper Bright*, 144 S. Ct. at 2294-95 (Kagan, J., dissenting) (observing that "Congress . . . does not—in fact cannot—write perfectly complete regulatory statutes" and that statutory subject matter is often too "specialized and varying" to capture in detail); *see also id.* at 2266 (majority opinion) (acknowledging that "no language is so copious as to supply words and phrases for every complex idea" (quoting *The Federalist No. 37*)).

independence gives way to administrative pragmatism.[78]

The inevitability of the gray area stems from the distinction between the legal container and the factual content. *Loper Bright* rightly reclaimed the judiciary's power to define the container, such as the statutory terms like "detailed statement" in NEPA or "forfeiture" in the Communications Act.[79] However, as *Seven County* illustrated, once the court defines the outer dimensions of that container, the task of filling it, or deciding which specific environmental effects are "reasonably foreseeable" or how to calculate a penalty for a massive data breach, shifts from interpretive linguistics to executionary judgment.[80] The Maximalist attempt to resolve these executionary questions through dictionary definitions is not just an overextension of judicial power; it is a category error.[81] It treats policy choices, which require weighing competing values and technical probabilities, as if they were hidden definitions waiting to be found in a 1996 edition of Webster's.[82]

The "gray area" is the domain where *State Farm*'s arbitrary and capricious review must operate as the exclusive check.[83] If courts attempt to police this zone using *de novo* review (by asking if the agency's choice was the "best" one rather than a "reasoned" one), they effectively nullify the discretionary power Congress explicitly preserved in the

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[78] *Seven Cnty.*, 145 S. Ct. at 1513.

[79] *Id.* at 1512; *Verizon*, 156 F. 4th at 102 (explaining that whether the statute delegates discretion is a question of statutory interpretation for the court, and concluding the Act grants the FCC discretion to determine the "unit of prosection" within reasonable bounds).

[80] *Seven Cnty.*, 145 S. Ct. at 1512; *Verizon*, 156 F. 4th at 102.

[81] *Loper Bright*, 144 S. Ct. at 2263.

[82] *Ohio Telecom Ass'n*, 150 F.4th at 711 (relying on 1934 and modern dictionary definitions to override the FCC's functional analysis of modern internet architecture).

[83] *See Loper Bright*, 144 S. Ct. at 2263 (affirming that the APA mandates deferential review for discretionary policy judgments under *State Farm*).

APA.[84] The law vs. execution dichotomy validated by the Supreme Court acknowledges that while Congress did not delegate the power to rewrite the law, it necessarily delegated the power to operationalize it within the friction of the real world.[85] Without this safe harbor, the "independent judgment" required by *Loper Bright* metastasizes into a judicial veto over every technical judgment call, paralyzing the very "reasoned decisionmaking" the statute demands.[86]

B. The Risk of Maximalism

The practical danger of the Maximalist model is not just that it empowers judges, but that it freezes the regulatory state by tethering modern governance to obsolete vocabularies. By insisting that every statutory term has a single "best reading" fixed at the time of enactment, the Sixth Circuit's approach in *In re MCP No. 185* effectively locks agencies into a linguistic time capsule.[87] This methodology transforms the "traditional tools of statutory construction" into instruments of functional obsolescence: if a technology did not exist or was not understood when a statute was drafted, the Maximalist model struggles to accommodate it without explicit Congressional update.[88]

The technical reality that the "best reading" of a statute regulating technology

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[84] *See* 5 U.S.C. § 706(2)(A); *id.*

[85] *Seven Cnty.*, 145 S. Ct. at 1512.

[86] *Loper Bright*, 144 S. Ct. at 2263; *see also Seven Cnty.*, 145 S. Ct. at 1513 (warning against judicial micromanagement of agency choices that fall "within a broad zone of reasonableness").

[87] *See* In re MCP, 124 F.4th at 1001 (citing *Niz-Chavez v. Garland*, 593 U.S. 155, 160 (2021)) (holding that courts must give statutory text its "ordinary meaning at the time Congress adopted" it).

[88] *See id.* at 1012 (rejecting the FCC's attempt to update the definition of "public switched network" to include IP addresses because "delegation is not unfettered" and the court must fix the boundaries based on the original meaning).

often depends on how that technology actually functions, not just how it was described in a dictionary decades ago[89] is ignored by this approach. By treating functional classifications as pure questions of law to be resolved *de novo*, the Maximalist model strips the agency of its primary comparative advantage: the ability to update the factual application of a statute as the underlying facts of the world change.[90]

Consequently, this model invites a form of regulatory conformity where agencies are powerless to address new harms because the controlling statutes are frozen in the past. The *In re MCP* court acknowledged that its ruling might leave a "regulatory gap," but insisted that such gaps are "for Congress, not us, to correct."[91] If every technical adaptation is treated as a novel question of statutory interpretation that is subject to *de novo* review, the judiciary becomes a bottleneck through which all innovation must pass. This demands a level of legislative agility that Congress has rarely demonstrated, forcing the legislature to update the Communications Act every time a new transmission protocol renders the old "best reading" technically inaccurate.[92] Unlike the Bifurcated model, which allows the "factual execution" of the law to evolve alongside technology, the Maximalist model demands a linguistic precision that reality rarely affords.[93]

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[89] *See id.* at 1009 (rejecting the FCC's functional analysis of "capability" in favor of dictionary definitions).

[90] *Loper Bright*, 144 S. Ct. at 2267.

[91] *See* In re MCP, 124 F.4th at 1009 (noting that even if a statute's best meaning leads to a regulatory gap, the court cannot expand the agency's authority to fill it).

[92] *See id.* at 1012 (requiring courts to "fix the boundaries of delegated authority" rather than allowing agencies to adapt definitions to new technology).

[93] *Cf. Seven Cnty.*, 145 S. Ct. at 1513 (warning that excessive judicial intervention can cause the regulatory process to "border[s] on the Kafkaesque" (quoting *Vt. Yankee Nuclear Power Corp. v. Nat. Res. Def. Council, Inc.*, 435 U.S. 519, 557 (1978))).

C. The Stability of Bifurcation

In contrast to the fragility of the Maximalist model, the Bifurcated approach secures long-term regulatory stability by aligning judicial review with institutional competence. By limiting independent judgment to the definition of statutory boundaries, such as whether "customer location" legally constitutes "proprietary information," courts avoid dealing with the task of arbitrating technical realities they are ill-equipped to understand.[94] The Second District's decision in *Verizon* demonstrates this stabilizing effect, as rather than freezing the "unit of prosecution" into a rigid judicial definition, the court found that calculating penalties for mass data breaches is a policy choice that is continued to be best managed by the agency's enforcement discretion.[95] This logic ensures that the judiciary is insulated from becoming a bottleneck for technological adaption, ensuring that while the law remains fixed, its application can evolve alongside the "complex or changing circumstances" of the regulated industry.[96] In the end, this model upholds the mandate established under *Loper Bright*, preventing agencies from rewriting their own enabling statutes while preserving their ability to execute them with the "reasoned decisionmaking" required by the modern administrative state.[97]

FUTURE OUTLOOK

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[94] *Sprint*, 151 F.4th at 363 (resolving the statutory definition of CPNI *de novo* while deferring to the agency's technical assessment of data security failures); *cf. id.* at 1513 ("Courts should afford substantial deference and should not micromanage those agency choices" that are required to execute a statutory mandate).

[95] *Verizon*, 156 F.4th at 102 (the Communications Act "vests the agency with some discretion to select . . . the unit of prosecution" within reasonable boundaries).

[96] *Seven Cnty.*, 145 S. Ct. at 1522 (Sotomayor, J., concurring) (affirming that deferential review is appropriate when applying regulations to "complex or changing circumstances" (citing *Kisor v. Wilkie*, 588 U.S. 558, 571 (2019))).

[97] *Loper Bright*, 144 S. Ct. at 2263.

A. The "Skidmore" Stabilization

With the *Chevron* era definitively ended, the immediate future of administrative law will not be defined by a binary choice between total deference and judicial supremacy, but by *Skidmore* respect being rehabilitated as a stabilizing force.[98] While the Maximalist model treats *Loper Bright* as an invitation to discard agency input entirely, the Bifurcated model suggests a more durable equilibrium, where courts will increasingly utilize *Skidmore* to defer to agency interpretations of technical statutory terms, not because they are bound to, but because the alternative (judicial intervention of technical standards) is unsustainable.[99] This shift fundamentally alters the incentive structure for federal agencies, as under *Chevron*, the currency of litigation was ambiguity, where an agency succeeded only by proving that Congress was silent.[100] Under *Skidmore*, the currency is persuasion.[101] To survive the "independent judgment" of the judiciary, agencies will likely draft more cautiously and defend their statutory interpretations more persuasively because agency rule drafters report that expected *Chevron* deference affects how aggressively agencies interpret ambiguous statutes.[102]

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[98] *Id.* at 2259, 2262 (emphasizing that interpretations resting on "specialized experience" constitute a body of judgments which courts may "properly resort to for guidance" (quoting *Skidmore*, 323 U.S. at 139-140)).

[99] *See* Kristin E. Hickman & Matthew D. Krueger, *In Search of the Modern Skidmore Standard*, 107 COLUM. L. REV. 1235, 1255-56 (2007) (describing *Skidmore*'s "sliding scale" conception and explaining that it gives agency interpretations weight based in part on agency expertise while still leaving the reviewing court to determine the outcome); *cf. In re MCP*, 124 F.4th at 1004.

[100] *Chevron*, 467 U.S. at 843.

[101] *See Loper Bright*, 144 S. Ct. at 2259 (quoting *Skidmore*, 323 U.S. at 139-140).

[102] *See* Christopher J. Walker, *Chevron Inside the Regulatory State: An Empirical Assessment*, 83 FORDHAM L. REV. 703, 723-25 (2014) (reporting survey evidence that many agency rule drafters believe agencies are more willing to advance "more aggressive" interpretations when they expect *Chevron* deference, while noting methodological limits).

The *Sprint* decision shows this pivot, as the D.C. Circuit accepted the FCC's interpretation of "customer location" not because the statute was ambiguous, but because the agency's technical explanation of how cell towers function, specifically that "[e]very cell phone is a tracking device," was the most persuasive account of the text's application to physical reality.[103] *Skidmore* will function as a doctrinal bridge between independent judicial judgment on statutory meaning and reliance on agency technical expertise when applying that meaning to complex regulatory realities.[104] While *Seven County* protects the factual execution of a policy from *de novo* review, *Skidmore* protects the technical legal reasoning that supports it.[105]

By according "great weight" to agency interpretations that demonstrate "thoroughness" and "validity," courts can effectively defer to the administrative state without formally abdicating their duty to say what the law is.[106] This creates a "shadow deference" that achieves the stability of *Chevron* without its "fiction" of implicit delegation, allowing courts to retain the final word while practically relying on the expert body to write the dictionary.[107]

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[103] *Sprint*, 151 F.4th at 352, 364-66 (citing the FCC's technical findings regarding network architecture to support the "best" reading of the statute over the carriers' objections).

[104] *See* Peter L. Strauss, *"Deference" Is Too Confusing—Let's Call Them "Chevron Space" and "Skidmore Weight"*, 112 COLUM. L. REV. 1143, 1153-55 (2012) (explaining "*Skidmore* weight" as judicial consideration of agency statutory views while courts retain responsibility for statutory meaning).

[105] *Skidmore*, 323 U.S. at 140; *see also Seven Cty.*, 145 S. Ct. at 1512; *Loper Bright*, 144 S. Ct. at 2267.

[106] *See* Strauss, *supra* note 104, at 1156 (stating agency views "may be entitled to great 'weight' on the judicial scales"); *Skidmore*, 323 U.S. at 140.

[107] *See* Hickman, *supra* note 99, at 1235-36 (reporting courts of appeals overwhelmingly follow a sliding-scale approach and that agency interpretations prevail in more than sixty prevent of *Skidmore* applications); *id.* at 1277 (arguing that *Skidmore* may represent "a thumb on the scale" in favor of agencies).

B. Congressional Response

The Maximalist model's insistence that every statutory ambiguity has to be solved through a "best reading" derived from the time of enactment creates a structural paradox that Congress is ill-equipped to solve.[108] By freezing regulatory statutes in 1996 or 1934, courts like the Sixth Circuit demand that the legislature define technical terms with a level of foresight that borders on clairvoyance.[109] The sheer volume of technical updates required to keep the United States Code current with modern technology, such as figuring out whether 5G network slicing constitutes "reasonable network management," would freeze an already gridlocked legislative branch.[110] The most likely Congressional response would not be the specific, granular updates the Maximalist model demands, but instead a retreat to "delegation by fact."[111]

Instead of attempting to define "telecommunications service" with technical precision, future Congresses are likely to draft statutes that specifically frame regulatory choices as factual determinations that have agency discretion.[112] For example, instead of defining a new technology, Congress could authorize the FCC to "determine, as a matter

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[108] *See* In re MCP, 124 F.4th at 1001 (holding that the meaning of the Telecommunications Act is fixed at the time of its 1996 enactment and rejecting dynamic interpretation).

[109] *See Loper Bright*, 144 S. Ct. at 2266 (quoting *The Federalist No. 37*).

[110] *See* Christopher J. Walker, *Legislating in the Shadows*, 165 U. PA. L. REV. 1377, 1416-18 (2017) (arguing that Congress often lacks the capacity of political willpower to update technical statutes, which leads to reliance on agency adaptation); *cf. In re MCP*, 124 F.4th at 1001.

[111] *See* Abbe R. Gluck & Lisa Schultz Bressman, *Statutory Interpretation from the Inside—An Empirical Study of Congressional Drafting, Delegation, and the Canons: Part I*, 65 STAN. L. REV. 901, 1003-06 (finding that congressional drafters are aware of different deference structures and often draft with specific delegation structures in mind).

[112] *See id.* at 994 (noting that drafters sometimes use broad language specifically to delegate resolutions to agencies).

of fact, whether a new service functions as a substitute for traditional telephony."[113] This strategy of drafting would use the concession from *Loper Bright* that courts must respect "constitutional delegations" of authorities to fact-find to effectively bypass the judicial monopoly on legal interpretation by converting mixed questions of law into pure questions of delegated fact.[114] While the Maximalist model may attempt to force Congress to speak clearly, it may ironically incentivize Congress to speak more broadly, delegating vast fact-finding powers that are insulated from *de novo* review by the very *State Farm* deferential standard the Supreme Court preserved. Some legals scholars argue the opposite, saying that strict review should encourage explicitness.[115]

C. The 20-Year Prediction

By 2045, the dust from *Loper Bright* will have settled into a history not recorded as the destruction of the administrative state, but recorded as its "fact-ification." Similar to how *Chevron* incentivized agencies to frame policy choices as legal interpretations to unlock Step Two deference, the post-*Loper* era will incentivize agencies to reframe legal interpretations as technical factual findings to unlock *State Farm* deference.[116] The "Maximalist" model will likely wither under the weight of its own impracticality, as the current federal judiciary simply lacks the institutional capacity to serve as the *de novo*

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[113] *See Loper Bright*, 144 S. Ct. at 2263 (recognizing that Congress may empower an agency to "fill up the details" of a statutory scheme (quoting *Wayman v. Southard*, 23 U.S. (10 Wheat.) 1, 43 (1825))).

[114] *Id.* (finding that when a statute delegates discretionary authority, the court's role is limited to ensuring "reasoned decisionmaking"); *see also Seven Cty.*, 145 S. Ct. at 1512.

[115] *See* Walker, *Legislating in the Shadows*, *supra* note 110, at 1422-23 (suggesting that strict judicial review may push Congress toward broader, vaguer delegations to avoid judicial invalidation).

[116] *See Seven Cnty.*, 145 S. Ct. at 1512; *cf. Loper Bright*, 144 S. Ct. at 2263.

linguistic editors for every technical specification written in the Code of Federal Regulations.[117] Instead, the Bifurcated model will emerge as dominant because it offers the only sustainable path for judicial review, where strict policing of statutory boundaries is framed alongside almost total abdication on technical execution.[118]

This shift will fundamentally alter how administrative law looks and operates. Agencies will stop issuing short, interpretive rules that are built upon the reliance of statutory ambiguity and instead produce massive, data-heavy records that are designed to prove a decision was a "fact-dependent, context-specific" choice rather than a legal one.[119] The shift is already visible in cases such as *Sprint*, where the D.C. Circuit upheld the FCC's authority not by deferring to its legal definition of "location," but by accepting its technical finding that a cell phone is functionally a tracking device.[120]

In this new mandate, the agency's power no longer rests on the "fiction" of implicit delegation, but on the "reality" of comparative expertise.[121] The irony of *Loper Bright* is that by stripping agencies of their interpretive "law-making" power, the Court has inadvertently encouraged them to entrench themselves behind the fortress of a 3,000-page administrative record, making their actual exercise of power harder, not easier, for general judges to overturn.[122]

CONCLUSION

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[117] *See* In re MCP, 144 F.4th at 1012; *see also Loper Bright*, 144 S. Ct. at 2267.

[118] *See Verizon*, 156 F.4th at 102.

[119] *Seven Cnty.*, 145 S. Ct. at 1512; *see also* Walker, *Chevron Inside the Regulatory State*, *supra* note 102, at 725-27 (finding that agency rule-drafters strategically change their drafting style to survive the prevailing standard of judicial review).

[120] *Sprint*, 151 F.4th at 364-66.

[121] *Loper Bright*, 144 S. Ct. at 2267.

[122] *Seven Cnty.*, 145 S. Ct. at 1511.

The "Rorschach test" of *Loper Bright* revealed less about the Supreme Court's intent than it has about the lower courts' structural anxieties. Based on the examples studied, for the Sixth Circuit, the decision functioned as a license to freeze the administrative state in the era of enactment, changing every ambiguity in the Communications Act into a fatal defect.[123] For the D.C. and Second Circuits, however, the decision was a mandate to bifurcate by guarding the judicial power, defining the statutory "container" while ceding the power to fill said container with executionary content.[124] *Seven County* has now decisively tilted the scales towards this latter model, validating a law vs. execution dichotomy that insulates agency fact-finding from the maximalist axe.[125]

This resolution does not promise a return to *Chevron* deference, but it offers something potentially more durable: a "*Skidmore* stabilization" where agency power rests on the "reality" of demonstrated expertise rather than the "fiction" of implicit delegation.[126] If the administrative state is to continue through the 21st century, it cannot be by asking courts to defer to its legal creativity, but by overwhelming them with their technical competence, which will in turn force judges to acknowledge that while they alone can define "telecommunications service," they possess neither the tools nor the time to map the network architecture of 5G.[127] The "boundary problem" that *Loper Bright* created is therefore not solved through the erasure of the line between law and policy, but by acknowledging that while the judiciary has to build the legal fences, the agency

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[123] *See, e.g.*, In re MCP, 124 F.4th at 1012.
[124] *See Sprint*, 151 F.4th at 363-64; *Verizon*, 156 F.4th at 102.
[125] *Seven Cnty.*, 145 S. Ct. at 1512.
[126] *See Loper Bright*, 144 S. Ct. at 2267 (quoting *Skidmore*, 323 U.S. at 140).
[127] *See* In re MCP, 124 F.4th at 1010; *cf. Sprint*, 151 F.4th at 352.

must tend the flock within them.[128]

[128] *See Loper Bright*, 144 S. Ct. at 2263.